

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X

JAQUAN CINTRON,

Plaintiffs,

-against-

THE CITY OF NEW YORK; NYPD P.O. JOHN/JANE
DOES # 1-10; the individual defendant(s)
sued individually and in their official
capacities,

Defendants.

SUMMONS:

Index No: _____

Date Filed: _____

Basis of Venue: Occurrence of
incident: New York County

Jury Trial Demanded

----- X

YOU ARE HEREBY SUMMONED to appear and to answer the Complaint in this action and to serve a copy of your answer on plaintiffs' attorney within twenty (20) days of the service of this Summons, exclusive of the day of service (or within thirty (30) days after service is complete if this Summons is not personally delivered to you within the State of New York), and in case of your failure to appear or to answer, judgment will be taken against you by default for the relief demanded in the Complaint.

DATED: NEW YORK, NY
JULY 16, 2020



MARTIN E. ADAMS, ESQ.
ADAMS & COMMISSIONG LLP
Attorney for Plaintiffs
65 Broadway 1603
New York, NY 10006
212-430-6590

DEFENDANTS ADDRESS:

The City of New York
100 Church Street
New York, NY 10007

NYPD P.O. JOHN/JANE DOES #1-10
23rd Precinct
164 E 102nd Street,
New York, NY 10029

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X

JAQUAN CINTRON,

Plaintiff,

-against-

THE CITY OF NEW YORK; NYPD P.O. JOHN/JANE
DOES # 1-10; the individual defendant(s)
sued individually and in their official
capacities,

Defendants.

----- X

Plaintiff JAQUAN CINTRON, by and through her counsel
Adams & Commissiong LLP, upon information and belief, alleges as
follows:

PRELIMINARY STATEMENT

1. This is a civil rights action in which plaintiff seeks relief for the violation of their rights secured by 42 U.S.C. §§ 1983 and 1988; and the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution. Plaintiff's claims arise from an incident that arose on or about September 15, 2018. During the incident, the City of New York, and members of the New York City Police Department ("NYPD") subjected plaintiffs to, among other things, unlawful search and seizure; false arrest; unreasonable force; failure to intervene; and implementation and continuation of an unlawful municipal

policy, practice, and custom; and respondeat superior liability. Plaintiff seeks compensatory and punitive damages from the individual defendants, compensatory damages from the municipal defendant, declaratory relief, an award of costs and attorney's fees, and such other and further relief as the Court deems just and proper.

2. Venue is proper in the Supreme Court of the State New York, New York County, because the acts in question occurred in the State of New York, New York County, and the City of New York is subject to personal jurisdiction in Supreme Court of the State New York, New York County.

PARTIES

3. Plaintiff Jaquan Cintron is a resident of the State of New York, Bronx County.

4. At all times alleged herein, defendant City of New York was a municipal corporation organized under the laws of the State of New York, which violated plaintiff's rights as described herein.

5. At all times alleged herein, defendants P.O. JOHN/JANE DOES # 1-10 were New York City Police Officers employed with the 23rd Precinct, located in New York County, New York or other as yet unknown NYPD assignment, who violated plaintiff's rights as described herein.

6. The individual defendants are sued in their individual and official capacities.

STATEMENT OF FACTS

7. On or about September 15, 2018, at approximately 6:45 A.M. at and in the vicinity of 427 East 102nd Street Apartment 1D, New York, New York, several police officers operating from the 23rd precinct, including upon information and belief, defendants NYPD P.O. John/Jane Does # 1-10, at times acting in concert, and at times acting independently, committed the following illegal acts against plaintiff.

8. On September 15, 2018, at approximately 6:45 a.m., at and in the vicinity of 3427 East 102nd Street Apartment 1D, New York, New York, several police officers operating from the 23rd precinct, including upon information and belief, defendants NYPD P.O. John/Jane Does # 1-10, without either consent, an arrest warrant, a lawful search warrant, probable cause, or reasonable suspicion that plaintiff (or any third person) had committed a crime unlawfully entered 427 East 102nd Street Apartment 1D, New York, New York.

9. The defendants, including defendants NYPD P.O. John/Jane Does # 1-10 broke into 427 East 102nd Street Apartment 1D, New York, New York. The defendant Police Officers Stated that they were looking for drugs and guns. If the defendant

officers had a search warrant, it was issued upon the basis of extremely unreliable information, the unreliability of which was withheld from the issuing magistrate.

10. If the defendant officers had a search warrant, they obtained it by failing to properly supervise and verify the reliability of an informant against NYPD policy and procedures to ensure the reliability of the confidential informant and the confidential informant's information before obtaining the warrant.

11. If the defendant officers had a search warrant, they were negligent in the execution of that warrant as the defendant officers negligently and incompetently went into the wrong apartment.

12. If the defendant officers had a search warrant, they were negligent and incompetent in obtaining the warrant, by negligently and incompetently providing the issuing magistrate the wrong address.

13. The defendant police officers searched plaintiff but did not find any contraband on his person.

14. Plaintiff was a guest in the premises and did not reside there.

15. The defendant officers arrested plaintiff and took him to the 23rd precinct where his arrest was processed.

16. During this time, in order to cover up their illegal actions, the Defendant officers, pursuant to a conspiracy, falsely and maliciously told the New York County District Attorney's Office that Plaintiff had committed various crimes.

17. The Defendants made these false allegations, despite the fact that they had no evidence that Plaintiff had committed a crime, to cover up their misconduct, to meet productivity goals and quotas, and to justify overtime expenditures.

18. However, because there was no basis to arrest and prosecute the Plaintiff, all charges against the plaintiff were dismissed.

19. The individual defendants acted in concert committing the above-described illegal acts toward plaintiff.

20. Plaintiff did not violate any law, regulation, or administrative code; commit any criminal act; or act in a suspicious or unlawful manner prior to or during the above incidents.

21. At no time prior to, during or after the above incidents were the individual defendants provided with information, or in receipt of a credible or an objectively reasonable complaint from a third person, that plaintiff had

violated any law, regulation, or administrative code; committed any criminal act; or acted in a suspicious or unlawful manner prior to or during the above incidents.

22. The defendants acted under pretense and color of state law and within the scope of their employment. Said acts by said defendants were beyond the scope of their jurisdiction, without authority or law, and in abuse of their powers, and said defendants acted willfully, knowingly, and with the specific intent to deprive plaintiff of his/her rights.

23. As a direct and proximate result of defendants' actions, plaintiff experienced personal and physical injuries, pain and suffering, fear, an invasion of privacy, psychological pain, emotional distress, mental anguish, embarrassment, humiliation, and financial loss.

24. Plaintiff is entitled to receive punitive damages from the individual defendants because the individual defendants' actions were motivated by extreme recklessness and indifference to plaintiff's rights.

FIRST CLAIM

(FALSE ARREST UNDER FEDERAL LAW)

25. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

26. Defendants falsely arrested plaintiff without consent, an arrest warrant, a lawful search warrant, probable cause, or reasonable suspicion that plaintiff had committed a crime.

27. Accordingly, defendants are liable to plaintiff for false arrest under 42 U.S.C. § 1983; and the Fourth and Fifth Amendments to the United States Constitution.

SECOND CLAIM

(UNLAWFUL SEARCH AND SEIZURE UNDER FEDERAL LAW)

28. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

29. Defendants unlawfully searched plaintiff's residence without cause, a warrant, or consent.

30. Accordingly, defendants are liable to plaintiff for unlawful search and seizure under 42 U.S.C. § 1983; and the Fourth and Fifth Amendments to the United States Constitution.

THIRD CLAIM

(UNREASONABLE FORCE)

31. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

32. The individual defendants' use of force upon plaintiffs was objectively unreasonable.

33. The individual defendant officers did not have an objective and/or reasonable basis to use any degree of force

against plaintiff, since plaintiff was unarmed, compliant, and did not resist arrest.

34. Those defendants who did not touch plaintiff, witnessed these acts, but failed to intervene and protect plaintiff from this conduct.

35. Accordingly, the defendants are liable to plaintiff for using unreasonable and excessive force, pursuant to 42 U.S.C. § 1983; and the Fourth Amendment to the United States Constitution.

FOURTH CLAIM

(FAILURE TO INTERVENE)

36. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

37. Defendants had a reasonable opportunity to prevent the violations of plaintiff's constitutional rights, but they failed to intervene.

38. Accordingly, the defendants are liable to plaintiff for failing to intervene to prevent the violation of plaintiff's constitutional rights.

FIFTH CLAIM

(MALICIOUS PROSECUTION UNDER FEDERAL LAW)

39. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

40. The individual defendants are liable to plaintiff for malicious prosecution because prior to any grand action, with intent, knowledge, and malice, the defendants initiated a malicious prosecution against plaintiff by drafting and signing a sworn criminal court complaint and police reports that provided false information to the court, alleging plaintiff had committed various crimes.

41. The individual defendants lacked probable cause to believe the above-stated malicious prosecution could succeed.

42. The individual defendants initiated the above-stated malicious prosecution to cover up their illegal and unconstitutional conduct.

43. The above-stated malicious prosecution caused a sufficient post-arraignment liberty restraint on plaintiff.

44. Accordingly, Defendants are liable to Plaintiff for unlawful search and seizure under 42 U.S.C. § 1983 and the United States Constitution.

SIXTH CLAIM

(MONELL CLAIM)

45. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

46. Defendant City of New York, through a policy, practice and custom, directly caused the constitutional violations suffered by Plaintiff.

47. Defendant City of New York through the NYPD and its officers, committed the following unconstitutional practices, customs and policies against Plaintiff: (1) unlawfully searching innocent persons; (2) wrongfully arresting innocent persons in order to meet productivity goals; (3) wrongfully arresting individuals based on pretexts and profiling; and (4) fabricating evidence against innocent persons.

48. Upon information and belief, Defendant City of New York, at all relevant times, was aware that the Defendants were unfit officers who have previously committed the acts alleged herein, have a propensity for unconstitutional conduct, or have been inadequately trained.

49. Nevertheless, Defendant City of New York exercised deliberate indifference by failing to take remedial action. The City failed to properly train, retrain, supervise, discipline, and monitor the individual Defendants and improperly retained and utilized them. Moreover, upon information and belief, Defendant City of New York failed to adequately

investigate prior complaints filed against the individual Defendants.

50. Further, Defendant City of New York was aware prior to the incident that the individual Defendants (in continuation of its illegal custom, practice and/or policy) would stop, arrest and prosecute innocent individuals, based on pretexts and false evidence.

51. The existence of the aforesaid unconstitutional customs and policies may be inferred from repeated occurrences of similar wrongful conduct involving the individual Defendants, placing the Defendant City of New York on notice of the individual Defendants' propensity to violate the rights of individuals.

52. In addition to frequently violating the civil rights of countless residents of New York City, numerous members of the NYPD commit crimes. Officers have been arrested and convicted of such crimes as planting evidence on suspects, falsifying police reports, perjury, corruption, theft, selling narcotics, smuggling firearms, robbery, fixing tickets, driving under the influence of alcohol, vehicular homicide, assault and domestic violence. In fact, former NYPD Commissioner Bernard Kerik was convicted of corruption-related crimes in federal and state courts and served time in federal prison. In 2011,

Brooklyn South Narcotics Officer Jerry Bowens was convicted of murder and attempted murder in Supreme Court, Kings County, while under indictment for corruption and is presently serving a life sentence. In 2011, Police Officer William Eiseman and his subordinate Police Officer Michael Carsey were convicted of felonies in Supreme Court, New York County, for lying under oath, filing false information to obtain search warrants and performing illegal searches of vehicles and apartments. In 2012, New York City Police Officer Michael Pena was convicted in Supreme Court, New York County, of raping and sexually assaulting a woman at gunpoint and is presently serving a sentence of 75 years to life.

53. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the NYPD were the direct and proximate cause of the constitutional violations suffered by Plaintiff as alleged herein.

54. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the NYPD were the moving force behind the constitutional violations suffered by Plaintiff as alleged herein.

55. The City's failure to act resulted in the violation of Plaintiff's constitutional rights as described herein.

WHEREFORE, plaintiff demands, damages in an amount which exceeds the jurisdiction of all lower Courts otherwise having jurisdiction, a jury trial and the following relief jointly and severally against the defendants:

- a. Compensatory damages in an amount to be determined by a jury;
- b. Punitive damages in an amount to be determined by a jury;
- c. Costs, interest and attorney's fees, pursuant to 42 U.S.C. § 1988; and
- d. Such other and further relief as this Court may deem just and proper, including injunctive and declaratory relief.

DATED: New York, New York
July 16, 2020

ADAMS & COMMISSIONG LLP,
Attorney for Plaintiffs
65 Broadway Suite 1603
New York, New York 10006
212-430-6590
martin@amcmlaw.com

By:



MARTIN E. ADAMS, ESQ.